

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1738

By: Moore

AS INTRODUCED

An Act relating to public health and safety;
exempting public trust hospitals from the Oklahoma
Open Meeting Act and Oklahoma Open Records Act under
certain circumstances; authorizing executive
sessions; providing exception related to budget
information; defining term; providing for
codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 3310 of Title 63, unless there
is created a duplication in numbering, reads as follows:

In the event a public trust hospital enters into a joint venture
or acquires an interest in a not-for-profit entity to effectuate the
administration of the mission of the public trust, that entity shall
not be subject to the Oklahoma Open Meeting Act and the Oklahoma
Open Records Act. Any information submitted to or compiled by the
public trust with respect to marketing plans, financial statements,
trade secrets, research concepts, methods or products or any other
proprietary information submitted to or compiled by the trust,

1 persons, firms, associations, partnerships, agencies, corporations,
2 institutions of higher education, nonprofit research institutions,
3 or other entities shall be confidential, except to the extent that
4 the person or entity which provided such information or which is the
5 subject of such information consents to disclosure. Executive
6 sessions may be held to discuss such materials if deemed necessary
7 by the trust. The provisions of this section shall not apply to
8 budgetary information related to appropriations or the
9 appropriations process. For purposes of this section "public trust
10 hospital" is defined as any hospital created pursuant to Section
11 176.1 of Title 60 of the Oklahoma Statutes or Section 790.1 of Title
12 19 of the Oklahoma Statutes.

13 SECTION 2. This act shall become effective November 1, 2025.

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